

5th causes of action with ten (10) days leave to amend. As to the punitive damages claim, the motion is granted with ten (10) days leave to amend, contingent upon the amendment of the 6th cause of action.

The ten (10) days leave to amend is from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2604148	FERRARI FINANCIAL SERVICES, INC. vs LEE	APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling:

The application for a temporary restraining order (and writ of possession after hearing) is denied. Although a Notice of Application for Writ of Possession and Hearing was filed on September 3, 2026, there is no proof of service filed and there is nothing to show that defendants were given any notice.

6.

CASE #	CASE NAME	HEARING NAME
RIC2000374	THE CITY OF JURUPA VALLEY vs BRACKINS	MOTION FOR ORDER APPROVING RECEIVER'S FINAL REPORT AND FINAL ACCOUNTING, RECEIVER'S FEES AND COSTS AND DISCHARGING RECEIVER

Tentative Ruling:

A receiver is an agent and officer of the court, and “is obligated to preserve and manage the property during the course of the receivership.” (*Southern California Sunbelt Developers, Inc. v. Banyan Limited Part.* (2017) 8 Cal.App.5th 910, 922.) They “are entitled to compensation for their own services and the services performed by their attorneys. ... Generally, the costs of a receivership are paid from the property in the receivership estate. ... However, courts may also impose the receiver costs on a party who sought the appointment of the receiver or apportion them among the parties, depending upon circumstances.” (*Ibid.* [internal quotations and citations omitted].) “A receivership terminates upon completion of the duties for which the receiver was appointed; or at any other time upon court order.” (Ahart, *California Practice Guide: Enforcing Judgments & Debts* §4:940 (Rutter Group 2023.) A receiver must present by noticed motion or stipulation of all parties: (1) a final account and report; (2) a request for the discharge; and (3) a request for exoneration of the receiver’s surety. (Cal. R. Ct. 3.1184(a)(1)-(3).) If any allowance of compensation for the receiver is claimed in an